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Uber Technologies, Inc., et al. v. Lyft, Inc.

PETITIONERS' MOTION TO ENFORCE SUBPOENAS

MOVING PARTY(S): Petitioners Uber Technologies, Inc., Rasier, LLC, and Uber USA, LLC

RESPONDING PARTY(S): Respondent Lyft, Inc.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Petitioners Uber Technologies, Inc., Rasier, LLC, and Uber USA, LLC (collectively, Petitioners) filed this action against respondent Lyft, Inc. ("Respondent" or "Lyft") arising from a lawsuit pending in Oklahoma state court, Jane Doe v. Uber Technologies, Inc.

Petitioners move to enforce the subpoenas issued to Respondent seeking five documents and ten deposition topics. Respondent opposed.

TENTATIVE RULING:

Petitioner's Motion to Enforce the Subpoena for Production of Business Records is GRANTED IN PART. Respondent is ordered to comply with the Subpoena for Production of Business Records issued April 6, 2026, as to Requests Nos. 2-5, only, within 30 days of this order.

Petitioners' Motion to Enforce the Deposition Subpoena is GRANTED IN PART. Respondent is ordered to comply with the Deposition Subpoena issued April 6, 2026, as to Requests Nos. 1-4 and 6-8, only, within 30 days of this order.

Moving parties to give notice, unless waived.

DISCUSSION:

Motion to Enforce Subpoenas

A. Background

This matter arises out of an Oklahoma state court action in which a plaintiff (Plaintiff) alleges that she was sexually assaulted by an independent driver during a ride requested through the Uber platform. Plaintiff brought claims against Uber, Lyft, and the independent driver who assaulted her, Timothy Greene (Greene). Plaintiff's claims against Uber turn on its participation with Lyft in the Industry Sharing Safety Program (ISSP). Under the terms of the ISSP, Lyft and Uber agreed to share information about independent drivers who were deactivated on their respective platforms due to serious safety incidents, including sexual assault, with a lookback period going back to December 31, 2016. Plaintiff alleges that Uber should have known about a July 2019 alleged sexual assault incident that resulted in Greene's deactivation from Lyft through ISSP. Lyft has been dismissed in the Oklahoma Action.

In this petition, Uber seeks to obtain discovery from Lyft it deems necessary to develop its defense to the Oklahoma Action.

The Court addresses both subpoenas in turn.

B. Subpoena for Production of Business Records

Petitioners seek:

1. The July 2019 report related to Timothy Greene submitted by the guest rider or other reporter (the "Report").
2. Documents sufficient to show the date the Report was received.
3. Documents sufficient to show when Lyft's investigation of the Report began.
4. Documents sufficient to show the date Greene was deactivated from the Lyft platform.
5. Documents reflecting Plaintiff's [In the underlying action] use of the Lyft App from January 1, 2019 to the present.

(Horn Decl., Ex. 3.)

Respondent opposes each category of documents on similar grounds. Namely, "according to Uber, the relevant issue for its asserted defense is whether and when information concerning Greene was transmitted through the ISSP before Plaintiff's May 2021 ride" but the requested documents go beyond such relevancy. (See e.g. Lyft Separate Statement at p. 4.)

Here, Requests Nos. 2-4 appear relevant and narrowly tailored to support the underlying action. Information regarding the date of the reporting is relevant to if/when the report was ultimately transmitted through the ISSP. The requests appear reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc. § 2017.010; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 540-541 [discovery statutes should be construed liberally in favor of discovery.]) The requests are not overboard, duplicative, or unduly burdensome.

Similarly, Request No. 5 appears appropriate for this action. Whether Plaintiff continued using rideshare services after the alleged assault is relevant to Petitioners' defense in the underlying action. While Lyft has already produced Plaintiff's profile

and ride history, Uber requests additional categories including Feedback & Ratings, further trip details, and ticket information that Lyft believes goes beyond the relevant scope of discovery. However, such information may be persuasive in evaluating Plaintiff's emotional state following the 2021 incident.

Further, Plaintiff has a recognized expectation of privacy in her Lyft records, although to an extent, Plaintiff has reduced that privacy interest by bringing the Oklahoma Action and alleging wrongdoing evidenced in Lyft and Uber trips. When balancing Plaintiff's privacy interests against Petitioner's interest in discovering documents that are relevant to Petitioner's defense of the action, this Court finds the balance shifts in favor of disclosure. The Court agrees with Petitioners that the categories sought are relevant. Further, the Court notes the parties have an active protective order in place arising from the Oklahoma Action. Such a protective order alleviates some of the Court's concerns with Plaintiff's privacy rights.

Moreover, admissibility at trial is not to be mistaken with discoverability. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Pro. § 2017.010; *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301 ["discovery is not limited to admissible evidence"].) Evidence is relevant if it "ha[s] any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the action." (Evid. Code § 210.) Requests Nos. 2-5 seek relevant evidence, even if such evidence is ultimately not admissible at trial—a question this Court expresses no opinion on.

However, Request No. 1 appears to go beyond seeking relevant dates. Petitioners seek "The July 2019 report related to Timothy Greene submitted by the guest rider or other reporter." (Horn Decl., Ex. 3.) Here, there appears to be no dispute that this report documents a sexual assault of a third-party by Greene. How information documenting such assault, including the third-parties identity and sensitive personal information, is reasonably calculated to lead to the discovery of admissible evidence is unexplained. Indeed, it appears the Petitioners concede this attack took place and a report exists. The third party's sensitive information in the underlying report appears irrelevant to Petitioner's defense.

Accordingly, Petitioner's Motion to Enforce the Subpoena for Production of Business Records as to Request No. 1 is DENIED.

Petitioner's Motion to Enforce the Subpoena for Production of Business Records as to Request Nos. 2-5 is GRANTED.

Respondent is ordered to comply with the Subpoena for Production of Business Records issued April 6, 2026, as to Requests Nos. 2-5, only, within 30 days of this order.

C. Deposition Subpoena

Petitioners seek to take a deposition of the person most knowledgeable as to:

1. The date Lyft began providing information to HireRight pursuant to the ISSP.
2. The date Lyft provided information to HireRight related to Greene pursuant to the ISSP.
3. The reasons for any delay in providing historical driver deactivation information, including information related to Greene, to HireRight pursuant to the ISSP.
4. Plaintiff's use of the Lyft App from January 1, 2019 to the present.

5. The July 2019 report related to Timothy Greene and V.W. submitted by the guest rider or other reporter (the "Report").
6. The date Lyft received the Report.
7. The date Lyft's investigation of the Report began.
8. The date Greene was deactivated from the Lyft platform.
9. The purpose of the ISSP and Lyft's reason for agreeing to the program.
10. The reason(s) an intermediary (HireRight) was used for the ISSP program

(Horn Decl., Ex. 4.)

Here, the information sought is similar to the information requested in Petitioners' Document Subpoena. As discussed above, dates regarding the Report, dates of production of reports to HireRight or the ISSP, and Plaintiff's use of the Lyft app are all relevant to Petitioner's defense in the Oklahoma Action. Therefore, Requests Nos. 1-4, 6-8 are all appropriate under a totality of the circumstances. For the same reasons as stated above, information and details specifically provided in the July 2019 report are not appropriate under the circumstances. Therefore Request No. 5 is improper.

Finally, Requests Nos. 9-10 are irrelevant to the Oklahoma Action. Petitioners seek "the purpose of the ISSP and Lyft's reason for agreeing to the program" and the "reason(s) an intermediary (HireRight) was used for the ISSP program." (Horn Decl., Ex. 4.) However, Petitioners offer no argument or evidence to support why this information is relevant to the Oklahoma Action. Instead, such discovery appears to go to subjective business decisions made within Lyft with no bearing on Petitioners' defense. Therefore, such requests are improper.

Accordingly, Petitioners' Motion to Enforce the Deposition Subpoena as to Request Nos. 1-4 and 6-8 is GRANTED.

Petitioners' Motion to Enforce the Deposition Subpoena as to Request Nos. 5 and 9-10 is DENIED.

Respondent is ordered to comply with the Deposition Subpoena issued April 6, 2026, as to Requests Nos. 1-4 and 6-8, only, within 30 days of this order.

IT IS SO ORDERED.

Dated: September 11, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.